

IN THE HIGH COURT OF KERALA AT ERNAKULAM

W.P.(C) No. _____ of 2026

WRIT PETITION (CIVIL)

FILED UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA

PETITIONER:

Thomas Kurian, aged 52, S/o Kurian Mathew, Pulickal House, Aluva, Ernakulam District

RESPONDENTS:

1. State of Kerala, represented by the Secretary, Local Self Government Department, Thiruvananthapuram
2. Aluva Municipality, represented by its Secretary, Aluva

BY ADV. S. Rao

Court fee paid: Rs. 250

Cause of action arose on: 02.08.2026

INDEX

1. Synopsis and list of dates page 3
2. Writ Petition (Civil) page 4
3. Affidavit page 5
4. Vakalatnama page 6
5. Annexure P1: True copy of the order dated 02.08.2026 suspending the ration shop licence page 7

SYNOPSIS

The petitioner approaches this Court aggrieved by the matters set out below. The petitioner runs a small ration shop licensed since 2009. By order dated 02.08.2026 the licence was suspended without notice or hearing.

LIST OF DATES

02.08.2026: cause of action

Filing: date of presentation

WRIT PETITION (CIVIL)

STATEMENT OF FACTS

1. The petitioner runs a small ration shop licensed since 2009. By order dated 02.08.2026 the licence was suspended without notice or hearing.
2. The order does not disclose any reason and was served only after the shop was sealed.

GROUND

- A. The suspension without a hearing violates the principles of natural justice.
- B. The order is unreasoned and cannot stand.
- C. The petitioner's livelihood under Article 21 is affected.

PRAYER

For the reasons stated above, it is respectfully prayed that this Court may:

- i. Quash the order dated 02.08.2026 (Annexure P1).
- ii. Direct the respondents to restore the licence pending a fresh hearing.

Dated this 10th day of October, 2026.

[Signed: Counsel for the petitioner, Adv. S. Rao]

AFFIDAVIT

I, Thomas Kurian, aged 52, S/o Kurian Mathew, Pulickal House, Aluva, Ernakulam District, do hereby solemnly affirm and state as follows:

1. I am the petitioner in the above case and I know the facts of the case.
2. The facts stated in the petition are true to my knowledge, information and belief.
3. The annexures produced are true copies of their originals.

Solemnly affirmed at Ernakulam on 10.10.2026.

[Signed: Thomas Kurian, deponent]

Identified by me. Attested before me, Notary Public, Ernakulam.

VAKALATNAMA

I, Thomas Kurian, the petitioner in the above case, appoint and retain Adv. S. Rao to appear, plead and act for me in the above case and in all proceedings arising from it.

I agree to ratify all acts done by the advocate in pursuance of this authority.

[Signed: Thomas Kurian, client]

Accepted: [Signed: Adv. S. Rao]

ANNEXURE P1

TRUE COPY OF THE ORDER DATED 02.08.2026 SUSPENDING THE RATION SHOP LICENCE

This is a true copy of the document produced as Annexure P1. The original document bears the seal and signature of the issuing authority and records the reference numbers, the date of issue and the particulars of the petitioner as set out in the petition.

Certified true copy. [Signed: Adv. S. Rao]